

Smt. Anuradha Chauhan v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 9 December 2022 · Writ-C No. 35554 of 2022 · WRIT - C No. 35554 of 2022 · **Writ disposed; consumer relegated to section 127 appeal; limitation not to be raised if filed within two weeks; predeposit required.**

HEADNOTE

The High Court treated a Rs 4.18 lakh electricity bill as a provisional assessment on a checking report under Clauses 8.1/8.2 of the Electricity Supply Code, 2005. Holding that the consumer had not given a correct picture and that a demand notice had issued after no objections, it disposed of the writ and relegated her to an appeal under section 127 of the Electricity Act, 2003, with a two-week window in which limitation would not be raised, subject to statutory predeposit.

FACTUAL SUMMARY

The petitioner claimed to run a five-room paying-guest accommodation, treated as non-commercial under a Government Order dated 8 August 1994, and to have paid electricity bills regularly. She was served a bill dated 28 October 2021 for Rs 4,18,323 without prior intimation of its computation, and later a demand notice dated 4 August 2022. Invoking writ jurisdiction, she sought to quash the demand as uninformed and contrary to the non-commercial character of paying-guest use.

HOLDING-UNITS

INTERPLAY · EA2003::127

relegation to section 127 after clause 8.1/8.2 demand

HOLDING

A bill issued on a checking report under Clauses 8.1/8.2 of the Electricity Supply Code, 2005 is a provisional assessment. Where the consumer files no objection and a demand notice follows, the High Court will not examine the demand on writ; the statutory remedy is an appeal under section 127 of the Electricity Act, 2003. An appeal filed within two weeks of the order, with a copy of it, is to be decided without a limitation objection; the statutory predeposit must still be made. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 The writ challenging the Clause 8.1/8.2 checking-report demand was disposed of by relegating the consumer to a section 127 appeal, without deciding tariff characterisation or quantum. ¶ 1

relegation-to-section-127-appeal-on-merits-limitation-not-examined Limitation was not examined on the merits; the Court directed that an appeal filed within two weeks with a copy of the order shall be decided without raising limitation, subject to predeposit. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER PAYING-GUEST ACCOMMODATION IS NON-COMMERCIAL UNDER THE GOVERNMENT ORDER DATED 8 AUGUST 1994

The Court did not decide the tariff characterisation; it held the petitioner had not given a correct picture of a Clause 8.1/8.2 checking-report bill. ¶ 1

NOT DECIDED — CORRECTNESS OF THE RS 4,18,323 ASSESSMENT AND THE DEMAND NOTICE DATED 4 AUGUST 2022

Quantum and computation were left to the section 127 appeal. ¶ 1

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.